

Subject: ShutUP Forwarder - response to refund demand

Dear Peter and Skander,

I acknowledge receipt of the refund demand dated 10 August 2026 and the technical assessment dated 10
→ August 2026. I dispute the demand for EUR 2,000 and the allegation that no deliverable was provided.
→ I do not accept liability, and I will not make the requested refund.

This response is based on the written record and is without prejudice to my rights and remedies.

This email is provided solely as a good-faith statement of my position in response to the refund demand
→ and to identify the evidence on which I rely. It is not an admission of liability, breach,
→ contractual scope, completion percentage, debt, refund entitlement, valuation, or acceptance of your
→ characterizations. It is not a settlement offer except for the separate, expressly conditional EUR
→ 700 proposal described below, and it does not waive or limit any claim, defence, or remedy. The
→ references to dates and communications are provided to explain the chronology. If any date, time, or
→ description is inadvertently misstated, that is due to the considerable stress involved in preparing
→ this response and the volume of the material, and I reserve the right to correct it by reference to
→ the original records. Nothing in this email should be treated as preventing me from relying on the
→ complete underlying email, WhatsApp, repository, branch, and test records if this matter escalates.

At the outset, I dispute the evidentiary basis of both `forwarder\_assessment\_report.pdf` and
→ `refund\_demand\_letter.pdf` and do not accept the conclusions or claims made in them. These documents
→ were prepared unilaterally after the work, based principally on the repository, correspondence, and
→ information I provided. Neither document is an agreed requirements document, contract, change
→ request, acceptance record, or independent determination of contractual completion. No
→ contemporaneous, mutually agreed requirements document has been provided to me or identified in the
→ records available to me as the basis for assessing the work. A post hoc report should not be treated
→ as creating new obligations or conclusively establishing a refund claim.

The documents also do not present a consistent account of the alleged failure. In the first project
→ meeting, the work was discussed as a static prototype. The assessment report then confirms that
→ backend code exists, stating that database access, AI calls, and business logic are implemented in
→ SvelteKit server-side route handlers, while criticizing the absence of a separate dedicated backend
→ and alleging that some workflows do not function correctly. That criticism needs to be put in its
→ technical context: SvelteKit is a full-stack framework in which frontend routes and server-side
→ backend logic can be implemented in the same application. It is not technically accurate to equate
→ this with the absence of a backend. The report's reference to a dedicated backend therefore does not
→ mean that backend code was absent or that no backend functionality was delivered. The later refund
→ letter shifts emphasis again, alleging that the core AI features were left unimplemented. These
→ differing descriptions do not identify a single contractual standard or explain precisely which
→ deliverable was allegedly required. They instead assess the work against broader and partly
→ different standards after the fact, including a production-ready system that was not agreed for the
→ EUR 2,000 starter engagement.

1. Scope agreed at the start

The wording quoted in section 2.4 of the assessment report describes the initial EUR 2,000 proposal as a
→ minimal product consisting of a login screen, basic functionality using mock data, input forms, and
→ decisions about the required user types. I do not accept the report's broader interpretation of that
→ proposal or its characterization of the engagement. The quoted wording does not specify a completed
→ AI platform, production SaaS foundation, payment system, GPS tracking, insurance workflow,
→ notification system, computer-vision damage analysis, or a six-week list of technical milestones.

The email record shows that the project was intentionally being developed as an initial, reviewable
→ prototype while requirements were still being clarified. In my 3 May 2026 email (Gmail, subject "Hi
→ praveen"), I expressly wrote, "We should define the scope," and described the EUR 2,000 work only as
→ a starting minimal product. On 5 May 2026 Peter replied that he needed to know precisely what he was
→ selling, and on 7 May 2026 I again stated that Peter needed to provide specifics or I would have to
→ make assumptions. On 3 June 2026 I described the application as based on assumptions and asked Peter
→ to provide clarity and review usability. On 15 June 2026 I described it as a skeleton application
→ with business logic and screens, stated that AI calls were intentionally blank for later image
→ verification and matching work, and stated that the bidding system was real. On 23 June 2026 I
→ explained that my goal was to understand the requirements and deliver a first prototype for review.
→ These communications support a staged prototype process, not a completed production AI platform for
→ EUR 2,000.

Peter's email of 20 June 2026 (Gmail, subject "Hi praveen") contained feedback and questions about user roles, business logic, security, listings, backend work, bidding, driver notification, technical documentation, AI integration, hours, and resources. I do not disregard that feedback, but it was not a mutually agreed BRD, a signed change request, a final acceptance specification, or a defined list of deliverable milestones. My reply on 21 June 2026 explained that the initial phase had limited requirements, that the backend business logic was implemented, that image upload and AI validation were intentionally mockups, and that the next step was a live demo and requirements review. Peter's email of 23 June 2026 also referred to business content that was not already clear and asked me to discuss technical details with Skander. The written record therefore shows an evolving discovery and clarification process rather than a stable, complete requirements document.

Section 2.4 of the assessment report labels four categories as "Agreed": (1) a six-week engagement with allocated resources; (2) a working technical foundation for the platform; (3) basic functionality with mock data, including login, forms, and user types; and (4) development resources to be presented and coordinated with the client. The report places a corresponding "Delivered" description beside each category. I do not accept those labels as proof that the categories, their extent, or their delivery conditions were mutually agreed. In particular, I never agreed to act as a staffing company, supply personnel for hire, or make my developers available for the client's separate management and selection process. I dispute the negative conclusions in the "Delivered" column. The table does not identify an agreed requirement for a completed AI platform or a production-ready system, and it does not make the assessor's conclusions contractually binding.

The first three categories must be understood in the context of the starter proposal and the contemporaneous emails: basic login, forms, user types, mock-data functionality, business-logic development, and a reviewable prototype. The report's later references to dedicated services, production infrastructure, auditability, advanced automation, and other SaaS requirements expand that standard after the fact. The fourth category was never agreed in the form asserted by the report. Developer interviews, hiring, dedicated staffing, and direct client management would require separate commercial terms and a budget appropriate for the resources involved; they were not included in the EUR 2,000 starter payment.

I repeatedly requested clear business requirements. No complete, mutually agreed BRD or equivalent requirements specification was provided to me before the project was ended. My 12 August 2026 email (Gmail, subject "Regarding Skander") recorded that no requirements document had ever been formally shared. On 5 August 2026 I again stated that a BRD was needed before deciding the operating model and next steps (WhatsApp, 5 August 2026, 21:24). Skander acknowledged that clear requirements were essential and said that a detailed BRD would be provided only after the developers had been vetted, the foundational infrastructure established, and an NDA signed (WhatsApp, 5 August 2026, 23:41). Thus, the BRD remained a future and conditional document rather than an agreed scope against which the already-developed prototype could fairly be assessed. Instead of first resolving the requirements, the discussion was redirected toward interviewing developers and obtaining additional resources. That later continuation condition was not part of the original starter scope.

During the first meeting, instead of providing a requirements document, Skander raised the following points orally as criticisms:

- ****Vercel:**** Skander said that Vercel should not be used because it is an Israeli company. In my view, demanding that a technology be rejected solely because of the country associated with its company is unprofessional and is not a reasoned technical objection. Nevertheless, I responded constructively by migrating the project from Vercel to Railway while retaining the SvelteKit architecture.
- ****Four database tables:**** Skander criticized the fact that the database contained four tables. This was my implementation decision for the prototype. The use of Clerk for authentication reduced the need for separate authentication and role tables, and the EUR 2,000 prototype did not require a large production schema. No database-design specification requiring a larger schema was supplied. This criticism is therefore not evidence that the agreed prototype was undelivered.
- ****Multilingual support:**** Skander raised multilingual support as a criticism. I had provided German and English support for the landing page, but full multilingual support throughout the product was not expressed by Peter in writing or agreed as part of the EUR 2,000 starter scope.

I was willing to discuss and address reasonable technical or product requirements once they were clearly defined and agreed. I acted on the deployment point that was actually discussed by migrating from Vercel to Railway while retaining the SvelteKit architecture, even though I considered the original objection superficial and unprofessional. These three oral points were not themselves stated as the grounds for the later refund demand. Instead, the later assessment report omits them and relies on a different set of criticisms drawn from the repository and other materials I supplied. In my view, the omission is significant: the points raised in the meeting were too superficial and unprofessional to serve as a credible technical assessment, so they were not tracked in the later report.

The later communications also focused increasingly on presenting and interviewing developers and on
→ arranging someone to manage the full-stack work. Supplying personnel for interview, hire, or direct
→ client management is not the same as delivering the agreed prototype and is not a staffing service I
→ agreed to provide. Dedicated developer allocation would require separate commercial terms and a
→ budget appropriate for the resources involved; it could not reasonably be expected within the EUR
→ 2,000 starter payment. There was no agreed deployment specification for the original starter work.
→ On 8 July, Skander said that the direction had become clearer after speaking with Peter and raised
→ the possibility of a Spring Boot environment to support eFT, EDIFACT, and eCMR frameworks. The
→ conversation also considered whether the existing SvelteKit application could connect through APIs
→ or whether migration to NestJS/TypeScript should be explored. I responded that I would study the
→ initiative and consult Spring Boot contacts. This was a client-driven exploration of a possible
→ future direction, not an agreed deployment requirement or an admission that the SvelteKit prototype
→ was deficient.

In my view, the later assessment does not address the superficial points raised in the meeting and
→ instead selectively relies on items that were either not implemented because they were expressly
→ reserved for a later stage, or were not agreed requirements at all. This creates the impression that
→ incomplete or future-scope items were selected from the material provided to support a refund
→ demand. The AI damage-analysis, photo-processing, and related advanced features were intentionally
→ left pending for the later AI-based POC. The broader POC was discussed at approximately EUR 10,000,
→ with the EUR 2,000 starter stage being only the initial portion and the remaining work expected to
→ be separately funded as the requirements evolved. Treating those deliberately deferred items as
→ proof that the starter prototype was undelivered is not a fair assessment of the agreed work.

2. Work delivered

The delivered repository is not merely a static screen-only mockup. It contains basic, prototype-level
→ implementations, among other things:

- Clerk authentication and role-based access for customers, forwarders, and administrators;
- PostgreSQL persistence through Prisma for users, jobs, bids, and driver applications;
- Customer vehicle-intake and job-submission flows;
- server-side validation and authorization;
- Rudimentary AI-assisted intake evaluation and target-price estimation;
- A basic forwarder marketplace with bid submission, bid evaluation, counter-offer, and approval
→ workflows;
- trip, status, tracking, cancellation, and completion flows;
- driver onboarding and administrator approval screens; and
- deployment configuration, seeded data, and API/integration tests.

These prototype-level features are summarized in the attached `features\_implemented.pdf` and are
→ supported by the source code. The attached document also clearly identifies unfinished or crude
→ placeholder implementations, including real photo uploads, GPS tracking, payments, notifications,
→ insurance, and production hardening. Those limitations are consistent with a basic prototype and do
→ not establish that nothing was delivered.

The report's reference to 30 commits is also incomplete and misleading when used to characterize the
→ entire development work. Its 30-commit figure refers to the limited 1-11 July history visible in the
→ repository snapshot that was provided for review. The consolidated Git summary records 71 unique
→ commits across multiple repository histories, with activity from April through August. The histories
→ also record work by multiple contributors and include feature, architecture, authentication,
→ bidding, database, deployment, tracking, authorization, and testing changes.

The final repository and the attached `features\_implemented.pdf` summary describe the work visible in
→ the final consolidated version. They do not include every branch and repository used by the three
→ developers during development. The underlying records show a sequence of implementation work, fixes,
→ configuration changes, and testing over several months, not an isolated short burst with no
→ functional development. I am prepared to provide the relevant branch histories, commit records, test
→ records, and source material so that the work can be reviewed in full rather than assessed only from
→ the final snapshot.

Today, 27 August 2026, I removed Skander's access from the GitHub repository at
→ <https://github.com/ForwarderDE/Fullstack>. I dispute the use of the limited repository history
→ available to him as a basis for constructing a claim against me, particularly where the assessment
→ does not account for the other branches, repositories, merged work, and later changes. If this
→ matter is escalated, I am prepared to produce the complete relevant Git history and supporting
→ records so that the development activity can be assessed in its proper context.

3. AI features and the evolving project direction

The initial EUR 2,000 work was described as a basic starting product so that requirements could be
→ clarified and the project could be demonstrated. The full AI-based logistics POC was discussed as a
→ substantially larger project, with an approximate budget of EUR 10,000. I did not represent that the
→ initial EUR 2,000 starter work included every AI feature in the later product vision.

The assessment and refund letter now treat the absence of AI damage detection, photo processing, and
→ other advanced automation as a breach. Those features were not defined as a complete, agreed
→ delivery scope for the starter engagement. The written record distinguishes between the EUR 2,000
→ basic starter work and a later AI-based POC discussed at approximately EUR 10,000 as the project
→ evolved. The AI-based POC was therefore a separate, larger stage of work, not a basis for declaring
→ the EUR 2,000 starter work undelivered. I also explained that photo-upload and related AI work would
→ be addressed in the AI phase rather than added prematurely to the initial prototype.

The same distinction matters to the standard now being applied. A basic EUR 2,000 prototype was being
→ developed to clarify requirements and support the next stage. Skander's assessment instead applies
→ the standard of a production-ready logistics system, including dedicated backend services,
→ production infrastructure, auditability, operational integrations, and advanced automation. That may
→ describe a future product objective, but it was not the agreed deliverable for the initial payment.
→ The absence of that future production system cannot establish a breach of the basic starter
→ engagement.

The technical assessment also criticizes technology choices, including Vercel, the number of database
→ models, and the absence of a separately deployed backend service. These are engineering preferences
→ or production-readiness observations, not proof that the agreed prototype was not delivered.
→ SvelteKit's server-side route handlers are the backend layer of the selected full-stack
→ architecture; a different architecture using NestJS or Spring Boot would separate that layer into
→ another service, but such a separation was not specified in the starter scope. These criticisms were
→ not supported by a requirements document or an agreed architecture specification supplied by you.

4. Change in control and termination

The original arrangement was directly between Peter and me: Peter would lead the business side and I
→ would lead the technical implementation. The written correspondence later changed that position. On
→ 5 August 2026 Peter wrote that "Skander has 100% decision-making power" and that Skander might end
→ the work relationship (email from Peter dated 5 August 2026). On 12 August 2026 Peter wrote that
→ Skander was CTO and that I had to work with him or end the relationship. On 17 August 2026 I
→ explained that this was materially different from our original arrangement and that the original
→ technical role no longer existed in that form.

The WhatsApp record confirms that the project was ended after I proposed arranging an experienced person
→ to coordinate the full-stack work. On 4 August 2026 I explained that I was handing the project to
→ another experienced person for coordination. Skander then required interviews with developers and,
→ on 5 August 2026, stated that the project was ended because I had not presented a competent
→ developer (WhatsApp, 4-5 August 2026). That was a new condition imposed after development had begun
→ and was followed by the refund demand.

It is therefore inaccurate to present the situation as a simple failure to deliver the original scope.
→ The technical direction, decision-making structure, and continuation conditions changed after work
→ and resources had been committed. A decision to continue under Skander's technical authority, or to
→ replace the existing stack and redevelop the product, would have been a new engagement requiring
→ clear written terms.

5. The 30% statement and the conditional compromise

In the first meeting with Skander, I gave a tentative estimate of approximately 30% in the context of an
→ evolving project discussion. It was not an acceptance of a contractual completion formula, a
→ valuation of the delivered work, or an agreed basis for calculating a refund. It was made before
→ subsequent code changes and feature work were completed, and before the project was unilaterally
→ ended.

The Git history provides evidence that development continued after that meeting. It records subsequent
→ feature additions, code changes, and testing performed by me and my developers, including work
→ continuing through August 2026. I can provide the relevant commit history, repository records, and
→ test evidence. Peter cannot reasonably treat an interim estimate made at the first meeting as a
→ final measurement while disregarding the work completed and tested afterwards.

Neither Peter nor Skander has a contractual right to convert that provisional statement into a
→ unilateral refund calculation. Completion must be assessed against the scope actually agreed, not
→ against an expanded scope later set out in the assessment report. Peter's email of 19 August 2026
→ relies on the tentative 30% statement while also disputing the scope itself; that does not establish
→ a debt of EUR 1,400.

My email of 17 August 2026 offered a refund of EUR 700 solely as a compromise to resolve the matter
→ amicably and avoid further dispute. That offer was expressly conditional on a written agreement
→ confirming all three terms: (1) that the requirements and technical direction had changed after work
→ began; (2) that technical leadership had been transferred to Skander, replacing the original
→ arrangement; and (3) that the EUR 700 would be a full and final settlement with no further refund,
→ payment, or related claim by either party. I also made clear that payment would not be made to
→ Skander's account and that a mutually agreed and verifiable payment method was required.

The EUR 700 proposal was not an admission that only EUR 700 of the EUR 2,000 payment was justified, or
→ that Peter's 30% calculation was correct. I was prepared to retain EUR 1,300 for the work, time,
→ resource commitments, and costs already incurred, and to return EUR 700 solely as a discretionary
→ compromise recognising the changed project direction. Therefore, the only refund amount ever
→ proposed by me was EUR 700, subject to the stated settlement conditions.

Peter did not accept those conditions. Instead, his email of 19 August 2026 rejected the basis of the
→ proposal, disputed the agreed scope, demanded at least EUR 1,400, and continued to rely on the
→ disputed 30% statement. His email of 23 August 2026 again asked to discuss a refund but did not
→ accept the required full-and-final settlement terms. The offer was conditional because the matter
→ had been handled in a manner that had seriously undermined my trust, and because I needed a complete
→ and final resolution rather than continued argument about the merits. As the conditions were not
→ accepted and the client continues to dispute the underlying position without acknowledging the
→ changed scope and circumstances, I expressly withdraw the EUR 700 compromise offer. It was never an
→ admission of liability or an agreed refund amount.

6. Refund demand and assignment

The refund letter dated 10 August 2026 demands payment to Skander's personal account and states that
→ Peter assigned the claim to him. I have not received a separate executed assignment document or
→ evidence sufficient for me to verify the alleged assignment, its scope, or the authority to receive
→ payment. Please provide any such document if you intend to rely on it.

More importantly, the demand remains disputed on its merits. The assessment report is a unilateral post
→ hoc technical opinion. Its ratings and recommendations do not establish a breach, the agreed scope,
→ or the amount of any loss. The threat of German debt-collection proceedings does not change that
→ position.

7. Final position

Because the conditional compromise was not accepted, and because the project was terminated after the
→ requirements, technical direction, and decision-making structure changed, I will make no refund. The
→ EUR 700 offer has been withdrawn and cannot be treated as an admission that any refund is owed. I
→ have sufficient documentary, repository, email, and WhatsApp evidence to set out and defend my
→ position if necessary. I have incurred business losses and resource-allocation costs in developing
→ the prototype and committing resources to the project. I also no longer have sufficient trust to
→ make any payment while the matter is accompanied by threats of legal action, an unverified
→ assignment, and demands based on requirements that were never agreed in writing.

I therefore reject the demand for a full refund and will not pay EUR 2,000, EUR 1,400, EUR 700, or any
→ other amount based on the claims in the assessment and refund letter. This is my final position
→ unless a court or other competent authority determines otherwise. Please preserve all project
→ repositories, branches, messages, emails, documents, and deployment records relevant to this
→ dispute.

All further communication about this dispute should be in writing. I am prepared to present and
→ substantiate my case using the complete underlying email, WhatsApp, repository, branch, commit, and
→ test records if this matter escalates. Nothing in this letter waives any claim or defence, including
→ claims arising from the unilateral termination, the change in technical control, the use and
→ characterization of my work, or business and resource losses caused by the changed direction and
→ termination.

Regards,

